

HOUSE BILL NO. 591

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A BILL FOR AN ACT ENTITLED: "AN ACT INSTITUTING THE DESIGNATING THE LAST FULL WEEK IN
SEPTEMBER AS CELEBRATE FREEDOM WEEK IN MONTANA'S PUBLIC SCHOOLS; PROVIDING THAT
AT LEAST 3 HOURS OF INSTRUCTION ABOUT THE DECLARATION OF INDEPENDENCE, THE UNITED
STATES CONSTITUTION, AND THE MONTANA CONSTITUTION BE PROVIDED DURING CELEBRATE
FREEDOM WEEK; REQUIRING SCHOOL DISTRICTS TO ENSURE THAT PUPILS IN GRADES 3 THROUGH
12 RECITE A CERTAIN PASSAGE FROM THE DECLARATION OF INDEPENDENCE; PROVIDING
EXCEPTIONS FOR PARENTAL REQUESTS, FOR CONSCIENTIOUS OBJECTIONS, OR FOR CHILDREN
OF CERTAIN FOREIGN REPRESENTATIVES REQUIRING THE TRUSTEES TO ADOPT A POLICY TO
ENSURE THE EFFECTIVE CONDUCT OF COMMEMORATIVE EXERCISES REQUIRED BY LAW;
AMENDING SECTION 20-1-306, MCA; AND PROVIDING AN EFFECTIVE DATE."

WHEREAS, informing students about the sacrifices made during the founding of the United States and
the values that underpin the nation is a worthy educational goal; and

WHEREAS, promoting an in-depth understanding of founding documents, including the Declaration of
Independence, the United States Constitution, and the Montana Constitution and their historical context and
significance, will further this goal; and

WHEREAS, students should have a clear understanding of the relationship between ideas in the
Declaration of Independence and key events in American history, including immigration, the American
Revolution, the formulation of the Constitution, the abolitionist movement, and the women's suffrage movement;
and

WHEREAS, the learning process will help instill a sense of patriotism and civic responsibility among
students; and

WHEREAS, a designated time during the school year when these principles are highlighted is a worthy use of school time.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. **Celebrate freedom week.** ~~(1) To educate students about the sacrifices made for freedom in the founding of the United States and the values on which the United States was founded, the last full week of classes in September must be recognized in public schools as c- celebrate f reedom w- eek.~~

~~(2) (a) Celebrate freedom week must include at least 3 hours of instruction in each social studies class regarding the topics provided in subsections (2) (b) and (2)(c), as determined by the trustees of a school district.~~

~~(b) The celebrate freedom week instruction must include an in-depth study of the intent, meaning, and importance of the Declaration of Independence, the United States constitution, including the bill of rights, and the Montana constitution in their historical context.~~

~~(c) The study of the Declaration of Independence must include the relationship of the ideas expressed in the declaration to subsequent American history, including the relationship of the declaration's ideas to:~~

~~(i) the rich diversity of our people as a nation of immigrants;~~

~~(ii) the American revolution;~~

~~(iii) the formulation of the United States constitution; and~~

~~(iv) the abolitionist movement, which led to the emancipation proclamation and the women's suffrage movement.~~

~~(3) During celebrate freedom week, the trustees of a school district shall ensure that all pupils in grades 3 through 12 recite the following text at the beginning of each school day:~~

~~"We hold these truths to be self-evident, that all men are created equal, that they are endowed by their creator with certain unalienable rights, that among these are life, liberty and the pursuit of happiness --that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed."~~

(4) — A school district shall excuse a student from the recitation required in subsection (3) on written request from a student's parent or guardian. The provisions of subsection (3) do not apply to a student who:

(a) — has a conscientious objection to the recitation; or

(b) — is the child of a representative of a foreign government to whom the United States government extends diplomatic immunity.

SECTION 1. Section 20-1-306, MCA, is amended to read:

"20-1-306. Commemorative exercises on certain days. (1) All districts shall conduct appropriate exercises during the school day on the following commemorative days:

(a) Lincoln's Birthday (February 12);

(b) Washington's Birthday (February 22);

(c) Arbor Day (last Friday in April);

(d) Flag Day (June 14);

(e) Citizenship Day (September 17);

(f) American Indian Heritage Day (fourth Friday in September);

(g) Columbus Day (October 12);

(h) Pioneer Day (November 1);

(i) Freedom Week (last full week of September), to educate students about the sacrifices made for freedom in the founding of the United States and the values on which the United States was founded;

(j) — other days designated by the legislature or governor as legal holidays.

(2) When these commemorative days fall on Saturday or Sunday, exercises may be conducted the preceding Friday.

(3) The trustees of a district shall adopt a policy to address and ensure the effective conduct of appropriate exercises for the commemorative days provided in subsection (1)."

NEW SECTION. Section 2.—Codification instruction. [Section 1] is intended to be codified as an integral part of Title 20, chapter 7, part 1, and the provisions of Title 20, chapter 7, part 1, apply to [section 1].

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